

25SMCV04959 25SMCV04959

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-08-04

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Case Number: 25SMCV04959 Hearing Date: August 4, 2026 Dept: 205

HEARING DATE: August 4, 2026

JUDGE/DEPT: Moreton/Beverly Hills, 205

CASE NAME: ABG EPE IP LLC and Elvis Presley Enterprises v. Imagination Gaming, Inc. et al.

CASE NUMBER: 25SMCV04959

COMP. FILED: September 23, 2026

PROCEEDINGS: REQUEST FOR ENTRY OF DEFAULT JUDGMENT

MOVING PARTY: ABG EPE IP LLC and Elvis Presley Enterprises

RESPONDING PARTY: Imagination Gaming, Inc.

BACKGROUND

This is a breach of contract case. Plaintiff entered into a written license agreement with Defendant whereby Plaintiff granted certain licensing rights to, among other things, the image, likeness and persona of Elvis Presley for Defendant's use in certain puzzles, board games, and trivia games. Plaintiff alleges Defendant breached the contract by failing to pay the licensing fees.

On September 23, 2025, Plaintiff filed a Complaint alleging a single claim of breach of contract. The Complaint seeks damages of \$61,500 plus interest at the rate of 10% per annum, attorneys' fees and costs.

Plaintiff substitute served Defendant on November 18, 2025. Defendant failed to respond. On April 9, 2026, following Plaintiff's filing of a Request for Entry of Default, the Clerk of the Court entered default against Defendants. This hearing is on Plaintiff's renewed request for entry of default judgment. The Court had denied the prior request because Plaintiff had not filed a statement of the case. Plaintiff has now filed the required statement with its renewed request.

REQUEST FOR RELIEF

Default judgment against Defendant for a total of \$77,385.71, which is comprised of: (1) \$61,500 in damages, (2) \$13,226.71 in interest, (3) \$539 in costs, and (4) \$2120 in attorneys' fees.

ANALYSIS

Code Civ. Proc. § 585 sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585 also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code Civ. Proc., § 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code Civ. Proc. § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiff has properly complied with all the substantive and procedural requirements for a default judgment. Substantively, Plaintiff declares via the declaration of its chief financial officer (Kevin Wills) that there have been damages in the amount of \$61,500. (Wills Decl. ¶ 6.) The evidence submitted (invoices) is authenticated by declaration. Plaintiff has submitted the declaration of its counsel as to the interest and costs incurred. However, the declaration does not sufficiently address how the attorneys' fees was calculated and accordingly, the Court excludes this amount from the default judgment. Procedurally, Plaintiff properly served Defendant more than 30 days prior to requesting entry of default and default judgment, correctly completed JC Form CIV-100 in a manner that would not void or put at issue the entry of default, provided a declaration of non-military status, requested damages in amounts supported by the filings and not in excess of the amount stated in the Complaint, requested dismissal of doe defendants and filed a proposed judgment (JUD-100). As default has already been entered and there has been no appearance by Defendants, default judgment is appropriate here.

CONCLUSION AND ORDER

For the foregoing reasons, Plaintiff's Request for Default Judgment is GRANTED IN PART as to Defendant. Judgment in the amount of \$75,265.71, is awarded in favor of Plaintiff.